

27. **Trustees liable to rates.** — Again, trustees are liable to be *rated* for the property vested in them (*f*), unless they are trustees *exclusively* for public purposes without any profit to themselves or a particular class, as trustees of court houses, prisons, or the like (*g*).

28. **Trustee pays the fine on admission to copyholds.** — The trustee of a *copyhold* must pay a fine on his admission (*h*), but as the fine follows the admission the lord cannot refuse admission until the fine is paid (*i*); and on the decease of a trustee a heriot becomes due to the lord (*j*); and where the trustee died intestate, and the customary heir *before admission* devised the estate, the lord was held to be entitled to a double fine on the admission of the devisee, as it carried with it also the admission of the deviser (*k*). But where a trustee died intestate, and the Court under the Trustee Acts appointed a new trustee in the place of the deceased trustee, and the lord demanded two fines, one for the admission of the customary heir of the old trustee, and another for the admission of the new trustee, it was held that he could claim

but one fine, viz., for the admission of the new trustee [*236] (*l*); * and where two or more trustees have been admitted *jointly*, on the decease of *one* neither fine nor heriot is due; not a fine for admission, because, joint tenants being seised *per my et per tout*, the estate is vested in the survivors or survivor by the original grant, and not a heriot, because, however many in number the trustees may be, they all form but one tenant to the lord, and therefore no heriot is demandable until the death of the longest liver (*a*). [Now on the death of a trustee of copyholds they vest in his legal personal representatives (*b*), who must pay the ordinary

(*f*) *Regina v. Sterry*, 12 Ad. & Ell. 84; *Queen v. Stapleton*, 4 B. & S. 629.

(*g*) *Regina v. Shee*, 4 Q. B. 2; *Mayor of Manchester v. Overseers of Manchester*, 17 Q. B. 859; *Queen v. Harrogate Commissioners*, 15 Q. B. 1012.

(*h*) *Earl of Bath v. Abney*, 1 Dick. 260; *S. C.* 1 Burr. 206.

(*i*) *Regina v. Wellesley*, 2 Ell. & Bl. 924.

(*j*) *Trinity College v. Browne*, 1 Vern. 441; see *Car v. Ellison*, 3 Atk. 77.

(*k*) *Lord Londesborough v. Foster*, 3 B. & S. 805.

(*l*) *Bristow v. Booth*, 5 L. R. C. P. 81.

(*a*) See 2 Watk. Cop. 147.

[(*b*) 44 & 45 Vict. c. 41, s. 30; *Re Hughes*, W. N. 1884, p. 53.]